UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF KENTUCKY
LOUISVILLE DIVISION

UNITED STATES OF AMERICA,	)	Case No. 3:22-CR-00094-DJH
Plaintiff,	)	**REDACTED**
v.	)	
SUZANNE CRAFT,	)	
Defendant.	)	March 6, 2023 Louisville, Kentucky

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VOLUME 1
TRANSCRIPT OF JURY TRIAL
BEFORE HONORABLE DAVID J. HALE
UNITED STATES DISTRICT JUDGE

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APPEARANCES:

For United States: Christopher C. Tieke
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Louisville, KY 40202

For Defendant: Angela M. Rea
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[Defendant present.]

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Proceedings recorded by certified stenographer, transcript produced by computer.

(Begin proceedings in open court at 9:05 a.m. Jury out.)

DEPUTY CLERK: 3:22-CR-94, United States of America v. Craft.

THE COURT: Let's start with appearances, please.

MR. TIEKE: Good morning, Your Honor. Chris Tieke and Stephanie Zimdahl for the United States.

MS. REA: Good morning, Your Honor. Angela Rea with Ms. Craft. She is present to my left this morning.

THE COURT: Good morning. Let's start with a few preliminaries. First, for the United States, is the Government ready to proceed in this case?

MR. TIEKE: Your Honor, the United States is ready to proceed.

THE COURT: Ms. Rea, is the defendant ready to proceed?

MS. REA: We are, Your Honor.

THE COURT: Let's first talk a bit about voir dire. The number of jurors is still in flux. I understand that one was involved -- I hope not seriously, but we don't really know yet -- in an accident nearby. We have a couple of no-shows, probably not a surprise given the closure of local schools. So I'm still waiting on that number for you.

We do, as I indicated in our final pretrial, plan to seat a jury of 14. I'm gonna ask you to take very good notes. I don't typically excuse for cause along the way. So if someone

presents with an answer, even if it's an obvious basis for excuse for cause, I'll send them back, and we'll just keep track. And I prefer to do it that way because I like to tell the jury pool that they will not know the basis for their not being selected.

Now, there are some exceptions to that. If there is some emergent problem with a member of the jury pool, we will reconsider that.

Under the rule, the Government will have seven peremptory challenges, the defense 11. We will have an opportunity with the jury pool out of the courtroom for you-all to go through and exercise -- take the time to exercise your peremptories. I typically ask the parties to -- once they are done marking their list, to show it to each other so that we can preview any Batson issues that might need to be taken up.

Do we have a bird in the courtroom? It sounds like there's a chirping occasionally. I don't know if it's an electronic chirp or if there's an actual bird here or near.

Any questions about any of that thus far?

MS. REA: No, Your Honor.

THE COURT: I would like to readdress *Missouri v. Fry*. We talked at the pretrial -- the final pretrial about whether the Government had made an offer, and the Government confirmed that.

And, Ms. Rea, you confirmed that that offer had been

communicated to your client. I want to follow up now and confirm that had that offer been accepted, you communicated to her that she would likely face less time in custody, if convicted -- or, rather, than if she was convicted on all counts following trial.

MS. REA: Yes, Your Honor, I did communicate that to Ms. Craft. It was part of the discussion that we had prior to the expiration of the offer made by the U.S.

THE COURT: Very well. Does either side see any need to follow up on the issues attendant to *Missouri v. Fry*?

MS. ZIMDAHL: No, Your Honor.

MS. REA: No, Your Honor.

THE COURT: Let's talk now about the statement of the case. You-all submitted a proposed -- jointly approved, proposed statement of the case. I did modify it slightly. My preference for the use of the statement of the case with the jury pool is to track the statutory language a little less sharply and try and use more everyday language, if you will.

So have you looked -- have you had a chance to look at the statement of the case that I think my law clerk provided to you upon your arrival?

MR. TIEKE: We have, Your Honor, and the United States has no objections to the statement of the case.

MS. REA: I have as well, Your Honor, and I have no objections.

THE COURT: All right. Thank you.

Let's then talk about the preliminary jury instructions. These are by the book. These are given in every -- have been given in every trial I've presided over.

The one modification, of course, is on the last page, Section 6, the section on the use of pejorative words. And there is the jointly submitted -- which I think is spot on, the jointly submitted instruction to the jury explaining how the pejorative language will be limited.

Now, I have modified it again very slightly. I think "euphemism" is a good word, but I think "substitute" will be better understood by the jury pool. That was the main change, I think. Any objections to Section 6 of the preliminary jury instructions?

MR. TIEKE: No, Your Honor.

MS. REA: And, no, Your Honor, not from the defense.

THE COURT: Have both sides had an opportunity to pick up the jury notebooks? I see one there.

MR. TIEKE: Yes, sir.

MS. REA: Yes, Your Honor.

THE COURT: And we can talk more later as the pool develops, but based solely on the juror profiles provided in the notebook, any objections or any need to discuss any of the juror material at this stage?

MS. REA: Not from the defense, Your Honor.

MR. TIEKE: Not from the United States, Your Honor.

THE COURT: This morning you-all submitted a number of stipulations of fact. I believe there are four of them; is that correct?

MR. TIEKE: There are four, Your Honor, yes.

THE COURT: All right. I'm gonna hand these back to you and ask you -- somebody who signed this to put today's date here. It's a minor matter. I could do it for you, but I would prefer you-all do that.

We don't need to go very far with our discussion of your stipulations at this stage. I doubt they'll come into play until tomorrow, at the earliest, but what I would like to discuss is the preferred process for using the stipulations.

I typically will defer to the lawyers, if the parties agree, to the timing of the stipulations. I have a very casual explanation I give to the jury when I read a stipulation. I simply -- and it's consistent with the form instructions, both preliminary and at the end, to say to them that this is a stipulation of fact I'm going to read. It represents an agreement of the parties, and as to an otherwise disputed fact, they can accept it as true. It's basically that simple.

So the question is, for each of these -- it would not be true as a group, but for each individual stipulation of fact, when is it best read?

And I will also add, I typically read the stipulations. I

think it's best coming from me as the neutral. It's an agreed upon fact, as opposed to having it read by a witness or a lawyer, especially -- I think it's inconsistent with having a lawyer read it, frankly, because we say that lawyers' statements are not evidence.

So unless you have already agreed to that -- that process, when you would like these stipulations to be read, we'll -- I'll just keep them. And you can signal me at some point, at the end of the testimony, "This is the appropriate point for the stipulation on the iPhone to be read," and we can do that.

The other issue with respect to stipulations is that there may be -- and this is also for another day. We don't need to resolve this this morning, but I want you to be aware -- there may be an instruction which a stipulation touches upon. There may be an element that a stipulation is applicable to, and if so, we can add that to the appropriate instruction. The Sixth Circuit has said that's perfectly fine, and it makes clear what the impact of the stipulation is.

So I will ask you-all, as you get to the draft instructions, which we hope to have to you maybe tomorrow, you can think about that as well. Any questions about stipulations?

MR. TIEKE: Your Honor, just one. You mentioned that we might possibly read those at the end. I'm not sure -- and we can obviously talk to Ms. Rea about this -- but we think it might be appropriate to do it in the course of where it makes

sense with a particular witness, instead of just putting it at the end.

THE COURT: That's fine with me. And if there's no objection to that, if that's an agreed upon process, then you can simply tell me when it's appropriate to read it. We will pause before calling another witness, and I will inform the jury I have a stipulation to read to them.

And as I said a minute ago, it will come with a simple explanation that a stipulation is simply an agreement by the parties as to an otherwise disputable fact. They can now accept the following as true, and I read it.

We typically do not supply them with the stipulations of fact at the end, although I'm not a stickler about that. So if there is anything in here that's complex or that might need to be supplied with the instructions at the end of the case, we can talk about that.

One of the stipulations -- I just, you know, briefly leafed through them. One of the stipulations, basically, just stipulates as to the admissibility of three photographs; right? That might be a stipulation that need not be read to the jury. It might be that you simply move for admission of the photograph and the defense says, "Consistent with the stipulation, no objection." We need not read that to the jury, since it's belt and suspendering an otherwise simple process.

All right. We'll take those up as we go.

Let's come back to voir dire. Does either side recognize any names in the book? Did you -- as you reviewed the list of jurors, did any names look familiar?

MS. REA: I did not, Your Honor.

MS. ZIMDAHL: Your Honor, there's just one from our side --

THE COURT: All right.

MS. ZIMDAHL: -- that we would raise. I don't know that it's necessarily a concern, but that would be Juror Number 25.

THE COURT: Juror Number 25 is a retired police officer, according to my notes; is that correct?

MS. ZIMDAHL: That is correct.

THE COURT: All right. I'll just mark 25 as somebody that is familiar with the Government.

MS. ZIMDAHL: And, Your Honor, just one further note. We do believe that that individual purchased the home of our task force officer. So there's a slight additional connection we would just make known. I don't believe that this is necessarily disqualifying or anything of that nature, but because we know it, we wanted to share it with everyone.

THE COURT: It might be disqualifying. I think there's -- you do business with somebody who's associated with one of the parties, we typically will excuse someone on that basis.

Rather than make Juror Number 25 sit here all day long, if both parties agree to an excuse for cause, I can communicate with our jury administrator and let him leave. Otherwise, he'll be here through the course of the -- like I said, my preference is to keep people around because someone may have a legitimate for cause reason. But if you let everyone go on the spot, it makes it impossible for you to prioritize those reasons if the pool starts to get thin so -- but this is one that seems a bit obvious. What's -- you raised it. What's your view?

MS. ZIMDAHL: Sure. Let me just get a little bit more relevant information.

Your Honor, I'll just add that it was approximately 15 years ago, and there were no personal interactions, but -- so I don't know, again, that it is necessarily disqualifying. However, given the nature of it, we wouldn't object to it on those facts.

THE COURT: What's your view?

MS. REA: And, Your Honor, we would be in agreement with and requesting that that potential juror be excused because of that business relationship.

THE COURT: All right. I think that's a reasonable position. Is it possible he could otherwise qualify? Yes, I think it's possible. He's a retired police officer. It's different than an active duty sworn officer, but I do think, given these circumstances, it's unlikely that he would make it to the jury.

So I will note for the record then that, by agreement, Juror Number 25 will be excused for cause, and I'll let you go ahead -- or let our deputy clerk communicate with our jury administrator. Presuming he has already checked in, we will let him go.

All right. Moving on, then. With respect to the voir dire, I have reviewed, of course, and incorporated some of the nonduplicative questions that have been proposed by the parties. As we go through the questions, keep track; and if there is a critical question missed or if an important question presents itself during the course of the voir dire that was not apparent during your preparation, we can discuss that at the end before we close voir dire.

Remember, also, that I will ask one lawyer for each side to stand and introduce themselves and those at their table early in the voir dire process. That's my practice. And then I will ask follow-up questions of the pool, if they know anyone at the table, that sort of thing.

Let's talk also now briefly about the 404(b) issues that are in our case here. Ms. Rea has pointed out correctly that it is appropriate to offer a limiting instruction when 404(b) evidence that has been approved by the Court is presented to the jury.

Here there is a lot of 404(b) evidence or evidence that is labeled as such, I guess, is the best way to approach it. So the challenge is disaggregating from the witnesses what is

404(b) and what is other testimony. That's, I think, potentially the case with, say, the case agent who may testify -- or any law enforcement agent that may testify regarding res gestae as well as 404(b).

And then, of course, there will be, I think -- from the materials submitted in camera by the Government, I think there will be witnesses limited to the 404(b) -- the approved 404(b) category. What we need to do is we need to have a method for instructing the jury regarding the limitation of that evidence consistent with the instructions of the Sixth Circuit.

So I don't anticipate we'll get to that today. I don't anticipate that will be an issue today. My hope for today's schedule is to get a jury seated and to get opening statements done. I seriously doubt we'll get beyond that today.

So to the extent that the parties can agree to a form limiting instruction on 404(b) that is consistent with the rule and the Sixth Circuit jurisprudence, then that would be my preference.

If the parties cannot agree, I will develop an appropriate 404(b) instruction and present it, but what I'd need -- in addition to the language of the instruction, what I also need is timing and specificity.

The purpose of the instruction, as you-all know, is to limit the use of the evidence to the specified and approved purpose. In some cases, I think it's identification. In some cases, I

think it's motive. The Government might have cited one or two others. But the instruction will need to be consistent with the Court's prior rulings, some of which I reserved, I realize that, and we'll have to do that on the spot. Even if we have to take a break to do it, we will do it in order to get it right.

But my preference is that you-all continue in the cooperative mode you've been able to utilize thus far and come up with a limiting instruction. Even if the jury, you know, hears it six or eight times and gets bored with it, I think the point will be made that they are to limit their use.

I think the Sixth Circuit case law would contemplate that the limiting instruction be repeated at the end; and the substantive instructions, along the lines of "you have heard throughout the case limiting instructions on the use of certain evidence," and it will repeat that they are to use and consider that evidence only for the stated purpose in which it was given.

So any questions about that? Is that asking too much of you-all to be able to put your heads together and produce -- I don't think it's that complicated, really. I think what's complicated is the part that you-all know better than I do, which is when it should be given and for what purpose.

MS. ZIMDAHL: Your Honor, I just want to ask one clarifying question. I want to make sure that we understand, and this is what I think is a little complicated. The United States gave notice of a lot of acts, just in an abundance of

caution, that we believe and I believe the Court ruled are res gestae rather than 404(b).

THE COURT: Right.

MS. ZIMDAHL: And I just want to make sure --

THE COURT: I'm not talking about that. If it's res gestae, it doesn't get a 404(b) limiting instruction.

MS. ZIMDAHL: Okay. I believe the majority of the acts that we are putting into evidence in this case are, in fact, the acts that the Court ruled are res gestae. There may be a few additional that fall into that "other" category, and those are --

THE COURT: I'm counting three or four.

MS. ZIMDAHL: Yeah.

THE COURT: But depending upon -- what I don't know is what to expect from law enforcement that are gonna talk about --

MS. ZIMDAHL: Sure.

THE COURT: -- potentially multiple categories of information, and they may slip into a 404(b). If they do, I expect both sides will be ready to on the one hand object, on the other hand advise the Court that 404(b) is coming or 404(b) was just touched upon, at which point we may need a limiting instruction.

MS. ZIMDAHL: Absolutely. I just wanted to clarify that point given that we had provided notice of so many different acts that -- I think we understood the ruling, but I

thought I better clarify at this point.

We'll absolutely -- I don't think that's too complicated at all for us to work together on that piece and get you a limiting instruction and be prepared to address it, if needed and when.

THE COURT: Very well.

All right. Anything else either side wishes to bring up at this point before I give you a brief break so that you can get organized? And then we will come back and invite the jury pool in. Hopefully, by that point, I'll have a specific number for you. I expect it will still be a generous number. We started with a larger than normal pool.

We're still dealing, to some degree, of course, with the impact of the pandemic, but we've also had this weather problem and schools cancelled in some places. So we have a larger than -- we're starting with a larger than normal pool. I don't think we'll have any problem getting to 14, but I will give you that number hopefully right before we call them in.

Anything?

MR. TIEKE: No, Your Honor.

MS. REA: Just briefly, Your Honor, a couple of things. One, I think both sides will be requesting separation of witnesses when we get to that point.

The other thing I would let the Court know of is, due to a medical condition, Ms. Craft will need frequent breaks. And I don't know if it would be best for the Court to establish a

schedule so we're breaking every hour, or if there's some other way that you would like us to make that known, but I did want to put it on the radar.

THE COURT: That's fine. I appreciate that. No, I won't do a hard schedule, just because five minutes on either side is often better than the straight up on the hour.

In my experience, we always have members of the jury pool who have similar issues. And so I try and break every hour, but it's -- it will be roughly -- we might come back and go for 45 minutes and then take a break, or it might be 65 minutes, but it'll be roughly every hour.

If a problem presents itself and an earlier break is needed, you can just -- you can just stand up and make that motion.

MS. REA: Thank you.

THE COURT: I'll know what you're talking about.

Again, anything else?

MR. TIEKE: No, Your Honor.

THE COURT: All right. What do you-all need, about 15 minutes, to organize and get ready?

MS. REA: Yes.

THE COURT: We will -- actually, let's talk a little bit about schedule and logistics. If we have the jury pool in here at 9:45, 9:50 roughly, we'll probably go for at least an hour and then give them a break as well as you-all.

I'm pretty thorough with voir dire, maybe thorough to a

fault, but I am fairly thorough. So I don't -- I'm not gonna make any aggressive predictions on how quickly we can seat a jury. I think it's gonna take a while, and I'm fine with that. So I want you-all to understand that.

Despite being thorough and despite not being in an inordinate hurry, I also don't want to waste time. So let me remind you-all that I only want one lawyer approaching the bench, if somebody needs to come up and speak privately. That really only applies to you-all, of course.

And while I will permit follow-up questions -- in fact, I will expect them in some circumstances to make sure that we have covered all of the bases. I don't think I need to say this to this group of experienced lawyers, but I don't want that abused. Right? So let's keep the follow-up questions on point, germane to the issue presented by the juror's original response, and let's keep things moving.

It's been my experience that we have some jurors who don't want to talk and are compelled to do so, you know, by their conscience, having been sworn and told, "We need your honest answers." So it'll be pulling teeth, and others want to tell us about their last trip to the grocery store. They really want to help. So our job will be to figure out what is the important part of their response, or what is the important part they have not yet told us about? And I will rely upon your follow-up questions to do that if mine don't get us there.

There's no manual on that, really, and I will not have a stopwatch. And I will not be keeping track of follow-up questions, but I'm just asking you to be reasonable, use your discretion as well.

There should be headphones. Do you have the appropriate equipment, Ms. Rea, so that your client can hear the bench conferences?

MS. REA: I have some earbuds, yes.

THE COURT: Good. If during the course of the voir dire while -- I just want to make sure here.

All right. During the course of the voir dire, if Ms. Craft needs to speak with you while you're up here, she can just raise her hand, and we will pause.

All right. I'm gonna give you 15 or 20 minutes. Is that sufficient?

MR. TIEKE: Yes, Your Honor.

MS. REA: Yes, Your Honor.

THE COURT: Thank you.

(Recess at 9:36 a.m.)

(Voir dire not requested as part of this transcript.)

(Proceedings continued in open court at 3:44 p.m. Jury in.)

THE COURT: Members of the jury, now that you have been sworn, I will give you some preliminary instructions to guide you in your participation in this trial.

First, it will be your duty from the -- to find from the

evidence what the facts are. You and you alone will be judges of the facts. You will then have to apply to those facts the law as the Court will give it to you. And when I refer to "the Court," I am referring largely to my role.

You must follow that law whether you agree with it or not. Nothing I may say or do during the course of the trial is intended to indicate or should be taken by you as indicating what your verdict should be.

The evidence from which you will find the facts will consist of the testimony of witnesses, documents, and other things received into the record as exhibits and any facts that the lawyers stipulate or agree to or that the Court -- again, that's me -- may instruct you to find.

Certain things are not evidence and must not be considered by you. I will list them for you now. First, statements, arguments, and questions by lawyers are not evidence. Objections to questions are not evidence.

Lawyers have an obligation to their clients to make objections when they believe evidence being offered is improper under the rules of evidence. You should not be influenced by the objection or by my ruling on it.

If the objection is sustained, ignore the question. If the objection is overruled, treat the answer like any other. If you are instructed that some item of evidence is received for a limited purpose only, you must follow that instruction.

Three, testimony that I have excluded or told you to disregard is not evidence and must not be considered.

Four, anything you may have seen or heard outside the courtroom is not evidence and must be disregarded. You are to decide the case solely on the evidence presented here in the courtroom.

There are two kinds of evidence, direct and circumstantial. Direct evidence is direct proof of a fact, such as testimony of an eyewitness. Circumstantial evidence is proof of facts from which you may infer or conclude that other facts exist. I will give you further instructions on these as well as other matters at the end of the case, but keep in mind that you may consider both kinds of evidence.

It will be up to you to decide which witnesses to believe, which witnesses not to believe, and how much of any witness's testimony to accept or reject. I will give you some guidelines for determining the credibility of witnesses at the end of the case.

As you know, this is a criminal case. There are three basic rules about criminal cases that you must keep in mind. First, the defendant is presumed innocent until proven guilty. The indictment brought by the Government against the defendant is only an accusation, nothing more. It is not proof of guilt or anything else. The defendant, therefore, starts out with a clean slate.

Second, the burden of proof is on the Government until the very end of the case. The defendant has no burden to prove her innocence or to present any evidence or to testify. Since the defendant has the right to remain silent, the law prohibits you from arriving at your verdict by considering that the defendant may not have testified.

Third, the Government must prove the defendant's guilt beyond a reasonable doubt. I will give you further instructions on this point later, but bear in mind that in this respect, a criminal case is different from a civil case.

The defendant, Suzanne Craft, is charged with mailing threatening communications containing a threat to injure a particular group of victims. The United States alleges that the defendant, Suzanne Craft, selected the victims of the threatening communications because of their race or color. The defendant has pleaded not guilty and denies these allegations.

For you to find the defendant guilty of mailing threatening communications containing a threat to injure a particular group of victims, you must be convinced that the Government has proved each and every one of the following elements beyond a reasonable doubt:

First, that the defendant knowingly mailed or caused to be mailed by the United States Postal Service a communication.

Second, that the communication contained a threat to injure a particular person or a particular group of individuals.

And, third, that the defendant mailed the communication for the purpose of making a threat.

If you find the defendant guilty of any or all of the charges in the indictment, you must then determine beyond a reasonable doubt whether the defendant sent the particular threatening communication because of the actual or perceived race or color of the victims.

To prove that the defendant acted because of the victim's group or group of victims' actual or perceived race or color, the Government must prove beyond a reasonable doubt that the threats would not have been made but for the fact of the victim's actual or perceived race or color.

Now a few words about your conduct as jurors. You as jurors must decide this case based solely on the evidence presented here within the four walls of this courtroom. This means that during the trial you must not conduct any independent research about this case, the matters in the case, and the individuals or businesses involved in this case.

In other words, you should not consult dictionaries or reference materials, search the internet, websites or blogs or use any other electronic tools to obtain information about this case or to help you decide the case. Please do not try to find out information from any source outside the confines of this courtroom.

Until you retire to deliberate, you may not discuss this

case with anyone, even your fellow jurors. After you retire to deliberate, you may begin discussing the case with your fellow jurors, but you cannot discuss the case with anyone else until you have returned a verdict and the case is at an end.

I know, of course, that most of you use cell phones, smartphones, access the internet, and use other tools of technology. You must also not talk to anyone at any time about this case or use these tools to communicate electronically with anyone about the case. This includes your family and friends.

You may not communicate with anyone about the case on your cell phone, smartphone, through email, iPhone, text messaging, Twitter, any blog or website, including Facebook, Google Plus, LinkedIn, Instagram, Snapchat, or YouTube. You may not use any other similar technology of social media even if I have not specifically mentioned it here.

I expect that you will inform me immediately if you become aware of another juror's violation of these instructions. A juror who violates these restrictions jeopardizes the fairness of these proceedings and a mistrial could result, which would require the entire process to start over.

Finally, do not form any opinion until all the evidence is in. Keep an open mind until you start your deliberations at the end of the case.

I hope that for all of you this case is interesting and noteworthy. If you want to take notes during the course of the

trial, you may do so. However, it is difficult to take detailed notes and pay attention to what the witnesses are saying at the same time. If you do take notes, be sure that your note-taking does not interfere with your listening to and considering all of the evidence.

Also, if you do take notes, do not discuss them with anyone before you begin your deliberations. Do not take your notes with you at the end of the day. Be sure to leave them here in the jury room.

If you choose not to take notes, remember that it is your own individual responsibility to listen carefully to the evidence. You cannot give this responsibility to someone who is taking notes. We depend on the judgment of all members of the jury. You all must remember the evidence in this case.

The trial will soon now begin. First, the Government will make an opening statement, which is simply an outline to help you understand the evidence as it comes in. Next, the defendant's attorney may but does not have to make an opening statement. Opening statements are neither evidence nor arguments.

The Government will then begin to present its witnesses, and counsel for the defendant may cross-examine them. Following the Government's case, the defendant may, if she wishes, present witnesses whom the Government may cross-examine.

After all of the evidence is in, the attorneys will present

their closing arguments to summarize and interpret the evidence for you, and I will then instruct you on the law. After that, you will retire to deliberate on your verdict.

Now, finally, this case involves the oral and written use of racial slurs. The lawyers and the Court will use substitutes in place of these racial slurs when addressing you and the witnesses. However, at times the victims and witnesses in this case will use the actual words that were spoken and written because the use of the actual words is at issue in this case. In addition and for the same reason, exhibits shown to you will contain the actual words written.

That concludes our preliminary jury instructions. By agreement with the lawyers, we're going to take a brief break now to allow the lawyers to prepare for their opening statements.

It is close to 4:00. I believe that we will have enough time for you to hear opening statements by the Government and by the defendant, if the defendant wishes to go forward, before we let you go home for the day. At that point, also, we'll talk about some logistics, some start times, some end times, and any challenges that any of you might have keeping to that schedule that we will do our best to work with.

All right. So we will take about a ten-minute break and return about 4:05. You heard me say during the voir dire breaks not to talk about the case. You just heard that in the

preliminary instructions. You'll hear me repeat it at every break.

Please don't talk about the case with each other or anyone else. You're just now beginning the case. There's not much for you to talk about anyway, but keep your discussions about noncase matters, and I'll see you in about ten minutes.

(Jury out 3:57 p.m.)

THE COURT: You may be seated. The jury has left the courtroom.

I believe, Counsel, you had mentioned there might be some matters that need to be discussed in advance of the parties' opening statements.

MS. ZIMDAHL: Yes, Your Honor. One of the primary issues we just wanted to flag and address with the Court was that we at least plan to touch on that 2019 incident. I know the Court had reserved ruling on that. We had flagged it in our 404(b) list for the defendant.

It's our position it's not 404(b) in the sense that it's not even an act of Ms. Craft, but we did want to raise that before we speak on it, since the Court was reserving ruling, and make sure that it was an area in which we could tread in opening statement and that we had flagged that for the Court at this time.

THE COURT: Is this your Category Number 1?

MS. ZIMDAHL: I believe it is. Before I misspeak, let

me make sure that that is correct in terms of the ruling. That is the incident in the late summer involving the use of a racial slur in the cul-de-sac.

THE COURT: The racial slur is alleged to have been used by the defendant's daughter; is that correct?

MS. ZIMDAHL: That's correct.

THE COURT: Any response?

MS. REA: Your Honor, very little response beyond what we've already argued in our filings. I would say I think the 404(b) implication -- acknowledging that the evidence to be introduced will be about Ms. Craft's daughter, the subtext of that is it came from somewhere and that it came -- her knowledge of the word and her use of the word came from Ms. Craft. So based on that, I do still think it's an other bad act piece of evidence. I don't have any additional argument to offer beyond what we've already given to the Court.

THE COURT: Here's where I come down: I think it is res gestae. I think it is background. Now -- and I think it's going to be permitted to be used, but I also think -- to your last point there, Ms. Rea, that a limiting instruction is appropriate here. We've done some preliminary research on a potential instruction. There is not a lot of law in this area, frankly.

I've found no pattern instruction, but I have found cases that indicate where it is appropriate for a jury to hear a

limiting instruction to the effect that statements made by an uncharged person are not imputed to the defendant and should not be considered as such by the jury. So we can talk about that more in depth, if you-all want to do that before you get into it in your opening.

But I think the incident -- I did initially reserve ruling. I wanted to go back and look at this and consider it some more. I do think it is res gestae. I think it is contextual. I think it's important for the context of the Government's proof, but I am concerned that -- to your point, Ms. Rea, that -- I can't recall now off the top of my head. How old was her daughter at the time?

MS. REA: Eleven at the time.

THE COURT: So a very young girl. The natural assumption is gonna be she heard that from only one person, and I don't think there's going to be any proof on that; right?

MS. ZIMDAHL: No, Your Honor. And we are offering this for the course of the story, just as you've said. This sets off sort of a chain of events in terms of how the family starts limiting contact, and that is why and one of the reasons I simply want to mention it briefly. It is not a large part of the opening, but it seems a strange event to leave out is why I'm flagging it now as well.

I think we'd want to discuss that potential limiting instruction a little bit further. There may be implications

that both sides need to think about a little bit further, but I don't see any significant problem with that in theory either at this point.

THE COURT: I would expect you would want to flesh it out. My preference would be that you agree on the instruction. The question is when do you want to do that? Do you need to do that now before your opening?

MS. ZIMDAHL: I don't think so, unless Ms. Rea believes that it's necessary.

MS. REA: I don't think we need to do it before opening.

THE COURT: And so then we can talk about it -- after openings are done and the jury's excused for the evening, we can talk about where in your witness list -- I presume it'll be fairly early.

MS. ZIMDAHL: Yes.

THE COURT: So if we're gonna talk about it, we might need to talk about it this evening or first thing in the morning to make sure that we're all on the same page as to the nature of the proposed instruction and the timing of the proposed instruction. Right? Anything further on that point?

MS. REA: No, sir.

MS. ZIMDAHL: Nope. The only other thing I have -- just in reference to opening, I've already shared the slides with Ms. Rea. We do intend to use just some short opening

slides. They do involve the mailings and some of the paintings in the case, just sort of as a heads-up to the Court. I know the jury will know this right out of the box then but wanted to let everyone know that's coming.

THE COURT: You know what's coming?

MS. REA: I do, Your Honor. I have seen them.

THE COURT: Some of them are subject to the stipulations you've already reached; is that right?

MS. ZIMDAHL: Yes. I don't believe there's any issues with these coming into evidence. It's more just the nature of what's going to be on them that I wanted to --

THE COURT: Well, I gave the instruction. I saw a lot of blank faces, but I saw a few raised eyebrows. So I think, as the trial unfolds, they'll understand a little better. Perhaps it was a bit confusing. I don't think so. I don't think so. I think we have a smart, engaged jury, and I think that -- I think that they understood what we were telling them through that agreed instruction about the use of substitute words when possible.

All right. Anything else before we bring them back? And you'll be ready to go? Do you want to start setting up now?

MS. ZIMDAHL: Your Honor, if we could have just a couple additional minutes to get things set.

THE COURT: Go ahead. I'll just stay here. There's no reason to reset everything.

Ms. Rea, will you also be using any of the A/V equipment or --

MS. REA: I will not, Your Honor.

THE COURT: Are you ready?

MS. ZIMDAHL: Yes, Judge.

THE COURT: I'm gonna let you begin from there, and I'll call you up.

MS. ZIMDAHL: Okay.

THE COURT: You can bring them in.

(Jury in 4:12 p.m.)

THE COURT: As I mentioned just after the instructions before our brief break, we will now hear opening statements, first from the United States.

Ms. Zimdahl, are you ready?

MS. ZIMDAHL: Yes, Your Honor.

THE COURT: Please proceed.

MS. ZIMDAHL: "Two dead N-lets, go N-words" written on a funeral home advertisement.

"N-words leave. We hate your kind, last chance."

"You had enough N-word bitch."

"Move out or bullets."

"You will die, bitch" and then an envelope containing two bullets and a threat, "get out."

These are some of the threats that the Pineda family received at their home between November and December of 2020.

This family, a beautiful American family consisting of mom, Michella Pineda, and her wife, Connie Pineda, and their five children. The Pineda family moved to the Lake Forest neighborhood in 2019, hoping to fulfill their dream of living in their forever home in a quiet neighborhood.

That dream was shattered when they became the target of racial slurs that escalated to receiving these threatening letters, many of which were targeted at their children, threats that left them living in terror, in fear for their safety and for the safety of the children that they loved so dearly.

Ladies and gentlemen, as you will learn, those children, the Pinedas' children, are multiracial, and their two older children identify as Black and Asian due to their genetic history. And it did not take long before this fact drew the ire of one of their new neighbors, the defendant, Suzanne Craft, and made them the focal point of their harassment and threats.

And now, ladies and gentlemen of the jury, I'd like you to -- I'd like to ask you to just excuse my language as I talk to you here today. I know I've already said and read some things that are very offensive, but, ladies and gentlemen, those are not my words. Those are the words that the defendant chose to use.

So I'd like to spend a little bit of time and tell you about the events that brought us here together today. In the spring of 2019, the Pineda family moved to a new home in the Lake

Forest neighborhood. They bought a house at 510 [redacted]. And at the time, their family consisted of Michella and Connie Pineda and four children -- K.P., S.P.1[redacted], S.P.2[redacted], and D.P.[redacted]. And they would later welcome that little girl you see in the middle, S.P.3[redacted], in 2020, during the events in this case.

Soon after they moved to the neighborhood, they do what most families do when they move in. They start meeting their new neighbors and among those was the defendant in this case, Suzanne Craft, and her daughter, S.W.[redacted].

Now, Ms. Craft lived one house away from the Pinedas at 507 [redacted]. You will hear that the Pinedas met Ms. Craft and her daughter shortly after moving in, and sometimes the Pinedas' children would be outside playing at the same time that S.W.[redacted] was outside playing. The kids weren't really friends, though. S.W.[redacted] wasn't especially nice to S.P.2[redacted], but the families maintained a cordial relationship.

A few months after the Pinedas moved in, there was an incident in the cul-de-sac. Craft's daughter, S.W.[redacted], referred to one of the Pinedas' children using a racial slur. This led to Michella and Connie Pineda telling their children, "Stay away from S.W.[redacted]. don't play with her. Limit your contact."

They tried to continue to maintain a cordial relationship, but they wanted their children to limit contact due to that racial slur and the language that had been used around their children.

Unfortunately, limiting contact wasn't enough. And on March 22nd of 2020, S.W.[redacted] again called the Pinedas' daughter K.P. an N-let and an N-word while K.P. and S.P.2[redacted] were outside on the cul-de-sac. K.P. tells S.W.[redacted], "Leave them alone," and she labels her a racist.

Shortly after, the defendant arrives at the Pinedas' home banging on the door yelling, "What the 'F' did that N-word say to you?"

Scared, Michella and K.P. crawl to the backyard to get Connie and to get help. When they come around front, they see the defendant, Craft, driving away. Thinking that Craft has left the neighborhood, the Pinedas allow their daughter S.P.2[redacted] to go back into the cul-de-sac to ride her bike right around that small cul-de-sac they live on under the watchful eye of her sister K.P.. that's what big sisters do. They watch their little sisters play.

So they're outside when Craft drives back in her car, pulls up next to S.P.2[redacted], rolls down the window and threatens to run her over. S.P.2[redacted] flees back home terrified. Her mothers come outside learning what's happened, and they confront Craft. Yelling ensues and, after a time, the Pineda family goes back inside, leaving the defendant standing outside their home intimidatingly for a period of time.

Ladies and gentlemen, the verbal slurs, these were not enough for Craft because on the morning of June 7th of 2020,

Michella and Connie Pineda awoke to find something terrible outside their home. Their driveway was painted in orange paint with the words "go away N-words." They were scared. They were humiliated. They were angry. They were worried about their children, especially K.P. and S.P.1[redacted], those two older children. They're multiracial, Black children at whom they thought these words were directed.

They called the police. They worked to clean this up off their driveway, and they worked very hard to keep their children from seeing this because they didn't want them to be scared and afraid.

The Pinedas also activated their security cameras at this time, and they moved them to a tree -- one of those cameras to a tree closer to this driveway. And it was a very good thing they did that because just over a week later, on June 16th of 2020, they awoke once again to find yet another driveway painting. This time it says "no N-words" with a swastika underneath.

Once again, it's an orange paint. Once again, the Pinedas are scared. They're humiliated. They're angry. And, again, they believed this was directed at their older children.

The Pinedas called the police, and this time they checked the footage on their recently activated Nest security camera. They looked in the early morning hours of June 16th, in that time leading up to when they found that driveway painting. And there they found footage of the defendant, Suzanne Craft,

walking from her home at 507 [redacted] to their driveway in those early morning hours and painting the racial slurs and then walking back toward her home.

On the morning of June 27th, the Pinedas awake again to find another racial slur, this time on the morning of the Lake Forest homeowners' yard sale, a day when the neighborhood is full of cars and traffic. This time it's written in gold paint and it says "go N-words" with a swastika underneath.

There again, full of all the feelings one can imagine in this moment, scared, humiliated, angry, they call the police. And they go and they check the footage on their Nest camera. They look to the early morning hours of June 27th, the hours leading up to this painting, and there they find footage of the defendant, Suzanne Craft, coming from her home, painting the racial slur on their driveway, and heading back to her home.

Now, ladies and gentlemen, you're gonna hear in the course of this case that the Pineda family was scared. They were humiliated, and they were frustrated because they tried multiple times to get help to get the defendant to stop painting slurs on their driveway and hurling slurs at their family.

The Louisville Metro Police Department and their homeowners association in Lake Forest had done nothing to bring an end to this harassment and the threats against them. And they felt helpless in making it stop and getting these threats against their children to come to an end; and so they turn to Facebook.

They posted about what was happening there, and they broadcast a plea for help. And through that a civil lawyer reaches out to them, and that lawyer suggests that they file a civil lawsuit for damages and for an injunction. The civil lawyer suggests that if they do this, they can try to get Ms. Craft to stop.

And so in July of 2020, the Pinedas file a civil lawsuit against Defendant Craft and the Lake Forest homeowners association in an attempt to try to stop -- to try to force an end to Craft's threatening harassment of their family and their children. Unfortunately, none of this worked, and Craft's threats against the family only escalated.

In November and December of 2020, the Pineda family began to receive threatening mailings. They found threatening letters in the mail and in their yard. These letters were all addressed to "Michelle Pineda." And you may have heard me say -- that's not quite her name. Her name is Michella Pineda, but it is in fact how the defendant, Ms. Craft, referred to Michella.

These threatening letters all shared similar characteristics. They're all cutout letters glued onto cardboard or other pieces of paper or mailings. They all contain threats against the Pineda family, and most of them contain racial slurs within the threats themselves, either within the individual threat or on the return address of the envelopes that you're gonna see through the course of this trial. And for many threats, that return address is "N-let

Destroyer," and that is consistent across many of these envelopes.

Michella Pineda finds that first threatening mailing addressed to the mistaken version of her name, cutout letters spelling out "go N-word" on a funeral home advertisement. It's chilling to say the least.

And then one day, while she's working in the yard blowing leaves, Connie Pineda discovers a ziplock bag by her fountain. That bag contained a threatening letter. And then the Pinedas find another one in the yard. And those two letters contained threats that read, "You had enough, N-word, bitch?" And another one, "Die stupid bitch, move out."

After finding those two threats in their yard, the Pinedas go and they check their security cameras. And they look in the weeks leading up to the time that they found those two letters, and sure enough, they find something on two separate dates, on October 18th of 2020 and November 1st of 2020.

On both of those dates, the Pinedas find video footage of the defendant, of Suzanne Craft coming from her home, dropping something in their yard, in the same location where they find the threatening letters, and then returning to her home. In one of those videos, she can be seen going into her garage and driving away in her car just after leaving something in their yard.

Now, ladies and gentlemen, these mailed threats, they just

kept coming. They're brought into the house from the mailbox to be found and opened by Michella and Connie Pineda. A horrible pattern was emerging. An envelope addressed to "Michelle Pineda" often with the return address of "N-let Destroyer" and a threat to harm a member of the Pineda family, threats that read: "Two dead N-lets. N-words, we hate your kind. Last chance. You will die, bitch. Die, die, stupid N-word. Move out or bullets."

And these threats start to come true. They escalate because one afternoon, while Michella is outside with Connie and one of their neighbors, she retrieves an envelope from the mailbox, and in that was another threat. And this time it was a pasta box wrapped around these two bullets with the note "Get out."

Ladies and gentlemen, the Pinedas, they took these threats seriously. They were scared. They changed their behaviors, and they took measures to keep their family safe, especially because they were very worried about the children they thought they were most directed at.

They kept those children inside. They didn't let them go out and play in the same way anymore. They took their trampoline down. They didn't let them ride their bikes in the cul-de-sac. They all started sleeping together in one room, a room that had no windows.

And so that brings us to the charges in this case. In this case, the defendant is charged with five counts of sending

threatening communications to the victims using the United States mail. The Government has also alleged that the defendant engaged in these offenses against the victims because of their actual or perceived race or color. I'm not gonna talk to you much about the law today. That's gonna be for another day, and Judge Hale will tell you a lot more about the law at the end of this case.

I will tell you that the Government, we must prove these charges beyond a reasonable doubt, just as the Government must in cases across this country, and that's exactly what we're going to do this week. And so I want to take just a few more minutes of your time and tell you how we're gonna do that, what kind of evidence you're gonna hear and who you're going to hear it from.

You're going to hear this week from members of the victim family themselves. You're going to hear from them in their own words what they heard, what they saw, and what happened to them. They will tell you about the things that the defendant said. They will tell you about the things she did and the racial slurs that she used to refer to them.

You will see pictures of the racial slurs painted on their driveway, and you will see the threatening letters and mailings themselves. You're also going to see those videos I've mentioned that were captured on the Pinedas' Nest camera system. In those videos, you're going to see a woman who looks like the

defendant walk from 507 [redacted], her home, to the Pinedas' home to paint racial slurs on the driveway and to drop items in the yard in the same place that they find those threatening letters.

You're also gonna hear this week from other neighbors who lived in that cul-de-sac, [redacted] in the Lake Forest neighborhood, and you're gonna hear what those neighbors -- things they heard, things they saw. You're also gonna hear from one neighbor who has video camera footage from the dates in question showing a person walking from 507 [redacted], bending over and painting something on the Pinedas' driveway.

You're also going to hear this week, ladies and gentlemen, from the father of the defendant's daughter, S.W.[redacted]. you will hear from him about how Craft sent him a picture of the two bullets that had been sent to the Pineda family in a threatening letter. You will hear that when he saw that, he immediately recognized those two bullets as his bullets, bullets he had saved as part of a set of three from his time in the military, bullets that he had last seen when he lived with Ms. Craft at 507 [redacted], and bullets that he found to be missing after he found out they had been sent to the Pinedas.

You're also gonna hear this week from law enforcement officers. You're gonna hear about their investigation in this case. You're going to hear from an FBI agent, a special agent with the FBI. You're gonna hear from an FBI task force officer,

and you're also going to hear from a postal inspector with the United States Postal Inspection Service.

They're gonna tell you about the many steps they took to investigate this case and to investigate the threats against the Pineda family. They're gonna tell you about some of the evidence and items that they sent to the FBI laboratory, and because of that, you're also going to hear from some laboratory witnesses this week.

You're gonna hear from a fingerprint examiner from the FBI laboratory who's gonna talk to you about fingerprint evidence. And one of the things you are going to hear is about how she found Defendant Craft's fingerprints on one of the threats, on that actual cutout interior piece of the threat that reads, "You will die, bitch."

You're also going to hear from a forensic examiner who specializes in DNA. He is gonna tell you about testing the materials and the mailings in this case for DNA. You're gonna hear from him that he only found two testable samples of DNA, and from those, he did not make an identification against Defendant Craft. You will also learn from him that it is common to come into contact with an item and not leave behind DNA.

Finally, there's one other lab witness I want to tell you about, and that's a questioned documents examiner. That's sort of a fancy name for saying a lab witness who comes and they look at all the different documents in a case. And this particular

document examiner is going to testify about his review in this case and how he determined that one of the items had scribbled out writing on it. And using laboratory techniques, he was able to see below that scribbled out writing.

He will tell you that he was able to determine that underneath that scribbled out writing, the letter was actually a Girl Scouts envelope addressed to the defendant's daughter at 507 [redacted]. So the threat that had been mailed to the Pinedas was actually glued to a piece of mail that had originally been sent to 507 [redacted] at Ms. Craft's residence.

Now, before I wrap up, there's just one other thing I want to flag for you, and that is the charges I mentioned earlier where I said that the Government has alleged and we're going to ask you to find at the end of this case that Defendant Craft engaged in these offenses because of the victim's perceived race or color. Race does not have to be the only reason that the defendant engaged in these offenses. It only has to be that the prosecution has to prove that it is one of the reasons, that is, if it were not for the fact that the Pineda family included multiracial children, children that she perceived to be multiracial, Black children, she would not have threatened them.

And, ladies and gentlemen, after you see the evidence in this case, including the direct language of those threats themselves, we submit to you that is not going to be a hard

conclusion to make. "Two dead N-lets" is pretty clear about the type of threat it intends to convey and the racial animus that is behind it.

The evidence in this case will prove that the defendant sent threatening communications to the victims using the United States mail and that she did so because of the victim's race or color. That is why, once you have heard all the evidence in the case, my colleague here is going to stand before you and ask you to follow the evidence in this case to the only place that it naturally leads, and that is to find the defendant guilty on all five counts. Thank you.

THE COURT: Ms. Rea.

MS. REA: Thank you, Your Honor.

Good afternoon. As you've heard, Ms. Craft already lived in [redacted] in April of 2019 when the Pineda family moved in. She had lived there for quite some time. She lived there with her daughter, S.W.[redacted], who was around about 11 years old at the time -- 11 years old at the time. She would turn 12 in December of 2019. S.W.[redacted]'s father did not live with them. He lived at his own residence. S.W.[redacted] spent time with him just about every other weekend, and you'll hear about that as well.

When the Pineda family moved in, things indeed were cordial at first. There were text messages exchanged, exchanged -- it was a cordial relationship for some period of time, but we agree it did not remain that way. You are going to hear and see

evidence of paintings on driveways. You are going to hear and see evidence about mailings.

I want to flesh out the scene just a little bit more. The cul-de-sac, obviously, has more than the two houses. So there's the 507 where Ms. Craft lives with her daughter. The Pinedas live at 510. There's a residence in between those on the cul-de-sac where an elderly lady named Ms. Betty Probst lived at the time. So when you're seeing the videos, when you're hearing about things, it's important to know the lay of the entire cul-de-sac and where people are. And you'll hear about where some of the other people lived as well, which will give you the perspective of what's going on.

When you see the videos that you will see in connection with the driveway paintings, in connection with the mailings, look at them carefully. What I will ask you to do is look at what they show you. Also, look at what they do not show you. Look at when they start. Look at when they stop. Look at specifically particularly where you see the person come from before going to the Pineda driveway or the yard area, where you see the person return to. Those kind of details are gonna be things that are important. They're gonna be things that we are gonna continue to talk to you about.

You're also going to hear that on the day of the first painting in the Pineda driveway, there was also one in Ms. Craft's driveway, similar language with a racial slur.

You're going to hear that a period of time prior to that, a couple weeks prior to that, there was a sexually explicit term in her yard burned as if made by chemicals or bleach or yard killer, something like that. You're gonna zoom out and hear other facts about what was going on in the neighborhood at the time.

Also, when you look at these videos, in addition to looking at where the person specifically comes from, where they start, where they stop, what you don't see, look closely at what the person actually looks like. I anticipate you will see some relatively contemporaneous photos of Ms. Craft. I will ask you to compare with particularity her build, you know, her shoulders, her feet, her overall physique because you will be asked to make a determination of whether Ms. Craft is indeed the person that you see in those videos.

You are, as the U.S. said, also gonna hear about some physical evidence. You are gonna hear that Ms. Craft's fingerprints, two of them, were found on a piece of mail that was delivered to her. You are going to hear that the item that was packaged with the bullet note -- it's gloves. It's the hospital gloves that you saw there in the wrist area. You will hear about those. That's where testable DNA was found, and Ms. Craft is not a contributor to that DNA on those gloves. So that is the physical evidence that you will hear.

In addition to listening carefully to what witnesses tell

you, keep track of, keep your eye on why they are telling you what it is they are telling you, where their motivations come from.

And very lastly, you all came here with your common sense in tow and think about what makes sense, whether it makes sense that Ms. Craft would commit the crimes that she is accused of committing and do so in the fashion that she is accused of committing them on camera when, after the Facebook postings, the fact that there was a recording was known to everybody in the cul-de-sac. I'll ask you to apply that common sense when you're examining the evidence.

And once you have received all of the evidence from the witnesses that -- as it's presented to you, you will then be instructed on the law, and you'll have to apply that to determine whether or not the United States has proven to you beyond a reasonable doubt all of the elements of these charges.

I will at that point get back up and talk to you and, again, really asking you to apply that common sense to think about the whys, to think about the big picture of what happened and who did what. And I'll ask you to find Ms. Craft not guilty of all five of these counts at the close of all of the evidence. I think, when you've applied that common sense, when you've looked closely at the evidence, it is the only verdict that you'll be able to reach.

Thank you.

THE COURT: Thank you, Ms. Rea.

Ladies and gentlemen of the jury, that is going to conclude your workday. The lawyers and I will stay here, and we will have a bit more work to do in preparation for tomorrow, but I wanted to talk to you now a bit about scheduling.

The typical trial day runs from about 9:00 to 4:30. That's typically how we try and schedule things. We do recognize that folks serving on juries, from time to time, have issues that pop up, and you have our jury administrator's contact. You need to let her know if you have any problems along the way.

Let me ask you-all, does anybody have a problem making it in in the morning by 8:40?

All right. So I'm gonna ask you all to report in by 8:40 in the morning, and we will plan to begin with the Government's first witness right around 9:00.

As I also said earlier, we will typically take a break about every hour, roughly. Sometimes we'll extend that a little bit -- if a natural break is soon to come, we'll extend that a bit, but you can plan for a break roughly about every hour.

We will also break for roughly 45 minutes to an hour and 15 minutes for lunch. Sometimes we will be giving you a longer lunch break because we're going to do a little bit of work for the afternoon session in advance.

Again, trials are not like they are on TV. There's a lot that goes on, and some of the delays that -- you might think,

"Well, we're sitting here waiting. It would be better to get the trial going along." Some delays actually ultimately save time because the lawyers and I are working on issues that might later save some time.

But I want you to think about delays in this way: If there is at any point a delay, I will do my best to warn you of it in advance. But if I don't have an opportunity for that, to the extent you express any annoyance at anyone for that delay, please direct that to me and not to the lawyers or the parties. We will do our best to avoid unnecessary delays, but a heads-up: Delays are inevitable in every trial. And, like I said, we'll do our best to work through them.

So I'm going to let you go for the evening now and ask you to report back at 8:40 in the morning, and it will be our goal to begin by 9:00 with testimony. And we'll go through to the -- roughly to the noon hour for an extended lunch break.

All right. Remember also that you are not permitted to talk about the case with one another or with any family members. When you go home and your significant other or children, partner, whomever it may be, is excited to hear about your trial, you have to say, "The judge told me I can't talk about it." Once your verdict is in, you can talk about it all you want. So you just have to tell them to hold off on questions until the case is over.

Now, in my preliminary instructions, I mentioned

note-taking. You will have, when you come in tomorrow, notebooks. As I indicated in my preliminary instructions, if you wish to take notes, use them. If you don't want to take notes, don't use them. If you want to do something in between, that's fine too. Just recall the instructions that I gave you on note-taking.

All right. That will suffice. I will see you at 8:40 in the morning or roughly 9:00. The jury administrator will see you about 8:40. Thank you.

(Jury out 4:47 p.m.)

THE COURT: All right. The jury has left the courtroom. Let's talk about any legal or procedural matters we need to address before tomorrow morning.

MS. REA: Your Honor, I think we could maybe talk after we leave here today about a potential limiting instruction. I don't have any other issues to address.

MR. TIEKE: Judge, one of the stipulations comes up for the first witness. It is the one that would have to do with the chain of custody. My intent would be to have that read at the point that we begin to introduce those, the letters, unless the Court, as it mentioned, would prefer to do it at the beginning or the end. I would suggest that it makes the most sense to have it read before the FBI agent begins to introduce the letters.

THE COURT: Again, I don't have a strong feeling one

way or the other at what point.

Ms. Rea, do --

MS. REA: I don't have any objection to proceeding that way. I think there's logic to it.

THE COURT: Your stipulations aren't numbered. They're all dated the same day. So are you talking about the stipulation that begins, "On or about November 13, 2020"?

MR. TIEKE: Yes, sir.

THE COURT: All right. So we'll call that Stipulation Number 1. That is the one that reads: "On or about November 13, 2020, the items identified as Exhibits 4, 5, 6, 7, 8, 10, 11, 12 were taken into custody," and then it goes on from there; correct?

MR. TIEKE: Yes, sir.

THE COURT: All right. And so you can just -- at the end of the testimony -- prior to cross or at the very end?

MR. TIEKE: Your Honor, I would just request it in the middle, right before I introduce those to set up the chain. And then essentially it comes -- you know, that ends with it coming to the FBI agent, and then the FBI agent would subsequently put it in.

THE COURT: All right.

MS. REA: I have no --

THE COURT: That doesn't mean a lot to me. I mean, that's fine.

MS. REA: I have no objection to that.

THE COURT: All right. We have now two instructions that one of -- the 404(b) will need to be, I think, given close in time to the testimony that it addresses as well as at the end. I believe the commentary suggests that or directs it, to the extent that the commentary can, strongly suggests it, I suppose. So I'll need you-all to address that and then, secondly, the instruction that I raised with you-all that follows from your concern, Ms. Rea, about the actions of the defendant's young daughter and not having her words or actions imputed to the defendant, given that she was not present and there's no other evidence to suggest she was directed in that manner.

So I'll have -- if you-all will stick around for a few minutes, I will have Jaylen provide you with a draft of that, and you can discuss it. Again, this is atypical. This is an atypical instruction, I would say. I think it follows from the circumstances and facts here and is appropriate as a result. It's as drafted simple and straightforward, but I want you-all to review it and give feedback, and we'll flesh it out.

So let's just plan on meeting here in the courtroom at 8:30 in the morning. Will that be enough time?

MR. TIEKE: Yes, sir.

MS. REA: Yes, sir.

THE COURT: Anything else we need to talk about this

afternoon before we adjourn for the day?

MS. REA: No, Your Honor.

MR. TIEKE: No, Your Honor. Thank you.

THE COURT: Thank you.

(Proceedings concluded at 4:52 p.m.)

C E R T I F I C A T E

I CERTIFY THAT THE FOREGOING IS A CORRECT TRANSCRIPT FROM THE RECORD OF PROCEEDINGS IN THE ABOVE-ENTITLED MATTER.

s/Dena Legg — September 21, 2023
Certified Court Reporter No. 20042A157 — Date
Official Court Reporter

REDACTION CERTIFICATE

I certify that the foregoing is a true and correct copy of the transcript originally filed with the clerk of court on 09/21/23 and incorporating redactions of personal identifiers requested by the following attorney of record: Angela M. Rea in accordance with Judicial Conference policy. Redacted characters appear as a black box in the transcript.

s/Dena Legg — October 30, 2023
Certified Court Reporter No. 20042A157 — Date
Official Court Reporter

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